

Tentative Rulings for Department 501

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Tentative Ruling

Re: **Nicole Rodriguez Jimenez v. Camilla Marquez**
Superior Court Case No. 25CECG01250

Hearing Date: August 26, 2026 (Dept. 501)

Motion: by Defendant Clifton Van Putten, M.D. to Compel, from each plaintiff individually, Initial Responses to:
(1) Form Interrogatories, Set One;
(2) Special Interrogatories, Set One; and
(3) Request for Production of Documents, Set One.

Tentative Ruling:

To grant each of the motions to compel initial responses to form and special interrogatories, and request for production of documents, against plaintiffs Jose Rodriguez Jimenez and Nicole Rodriguez Jimenez, individually.

Within ten (10) days of service of the order by the clerk, each individual plaintiff shall serve verified responses, without objections, to Form Interrogatories—General, Set One; Special Interrogatories, Set One; and Request for Production, Set One; and produce all documents responsive to the Request for Production.

Explanation:

Within 30 days of service of interrogatories, the party to whom the interrogatories are propounded shall serve the original of the response to them on the propounding party. (Code Civ. Proc., § 2030.260.) Within 30 days of service of a demand for inspection, the party to whom the demands are directed shall serve the original of the response to them on the propounding party. (Code Civ. Proc., § 2031.260.) A party that fails to serve a timely response to a discovery request waives “any objection” to the request. (Code Civ. Proc., §§ 2030.290, subd. (a), 2031.300, subd. (a).) The propounding party may move for an order compelling a party to respond to the discovery request. (Code Civ. Proc., §§ 2030.290, subd. (b), 2031.300, subd. (b).)

On December 1, 2025, defendant Clifton Van Putten, M.D. propounded sets of discovery on each individual plaintiff, Jose Rodriguez Jimenez and Nicole Rodriguez Jimenez, comprised of form interrogatories, special interrogatories, and request for production of documents. (Barnas Decls., ¶ 4, see Exhs. A.) To date, Defendant has received no response to the interrogatories and request for production propounded on plaintiffs. (Id., ¶ 10.) Neither plaintiff filed opposition to these motions to offer any substantial justification for the delay in response.

Accordingly, an order compelling each plaintiff to provide initial, verified responses is warranted. (Code Civ. Proc., §§ 2030.290, subd. (b), 2031.300, subd. (b).) All objections are waived. (Id., §§ 2030.290, subd. (a), 2031.300, subd. (a).)

